

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Peter J. Durant, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to hardship licenses for second offenders under the operating under the influence statute.

PETITION OF:

NAME:

James Cooke

DISTRICT/ADDRESS:

SENATE No.

By Mr. Durant (by request), a petition (accompanied by bill, Senate, No. 0000) (subject to Joint Rule 12) of James Cooke for legislation to allow individuals convicted of a second offense of operating under the influence to apply for a hardship license under certain conditions. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to hardship licenses for second offenders under the operating under the influence statute.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 24D of Chapter 90 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the fourth paragraph the following
3 paragraph:—

4 An individual convicted of a second violation of operating under the influence may apply
5 for a hardship license upon successful completion of the Massachusetts Highway Safety Alcohol
6 Driving Under the Influence of Liquor program, provided that such individual does not reside
7 within one-half mile of a public transportation access point, including but not limited to a bus
8 stop, subway station, or commuter rail station. Any individual granted a hardship license under
9 this paragraph shall be required, as a condition of such license, to install and maintain an ignition
10 interlock device approved by the registrar of motor vehicles, at the individual's sole expense, in

- 11 any motor vehicle he or she owns, leases, or operates. Said hardship license shall only permit
- 12 travel to and from the individual's place of employment or educational institution.